

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 HOUSE
5 RESOLUTION 1047

By: Sneed

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8 AS INTRODUCED

9 A Resolution emphasizing the State's interest in
10 CompSource Mutual Insurance Company; recognizing the
11 existence of CompSource Mutual Insurance Company as
12 an entity ensuring compensation under current
13 workers' compensation law; emphasizing that all
14 monies and assets of CompSource Mutual Insurance
15 Company are held in trust; and emphasizing the
16 public's interest in CompSource Mutual Insurance
17 Company.

18 WHEREAS, CompSource Oklahoma was allowed by the Legislature to
19 become a mutual insurance company, CompSource Mutual Insurance
20 Company, effective January 1, 2015, for the purpose of insuring
21 employers against liability for compensation under the
22 Administrative Workers' Compensation Act, the Oklahoma Workers'
23 Compensation Code, and previous workers' compensation laws; and

24 WHEREAS, because of the State Insurance Fund, the predecessor of
 CompSource Mutual Insurance Company, was created with taxpayer

1 funds, the State of Oklahoma continues to have an important and
2 vital interest in the operation of the company; and

3 WHEREAS, CompSource Mutual Insurance Company exists for the
4 purpose of assuring compensation for the persons entitled thereto
5 provided by the workers' compensation law, and for the further
6 purpose of insuring persons, firms, and corporations against loss,
7 expense, or liability by reason of bodily injury, death by accident,
8 occupational disability, or occupational disease suffered by
9 employees, for which the insured may be liable or have assumed
10 liability; and

11 WHEREAS, CompSource Mutual Insurance Company may further provide
12 insurance for employers against liability incurred as the result of
13 injuries sustained by employees engaged in employment subject to the
14 Longshore and Harbor Workers' Compensation Act, 33 U.S.C., Section
15 901 et seq., or employees engaged in employment subject to Title IV
16 of the Federal Coal Mine Health and Safety Act of 1969 as amended by
17 the Black Lung Benefits Act of 1972, as enacted or as may be amended
18 by the Congress of the United States; and

19 WHEREAS, the Supreme Court of Oklahoma has determined that the
20 creation of CompSource Mutual Insurance Company, as a successor to
21 the State Insurance Fund and CompSource Oklahoma, was a proper use
22 of legislative power under the Constitution of Oklahoma; and

23 WHEREAS, the Supreme Court found, and the Legislature affirms,
24 that all monies and other assets of CompSource Mutual Insurance

1 Company are held in trust for the benefit of the insured employers
2 or policyholders.

3 NOW, THEREFORE, BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES
4 OF THE 2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

5 THAT it is a matter of public interest to establish public
6 policy that Oklahoma maintains a statutory workers' compensation
7 system in which employers may obtain insurance to cover their
8 liability for benefits for workers injured in the course of their
9 employment as prescribed by the workers' compensation laws.

10 THAT the Insurance Commissioner take such actions as are
11 consistent with the provisions of this measure.

12 THAT the Oklahoma Legislature is committed to results which are
13 consistent with the provisions of this measure including, but not
14 limited to, statutory enactment or modification of administrative
15 rules.

16 THAT CompSource Mutual can only transition into a mutual
17 insurance holding company if it pays every policyholder their fair
18 and equitable ownership interest as owners and trustees of
19 CompSource Mutual.

20 THAT CompSource Mutual Insurance Company shall not be considered
21 a state agency, public body, department, or any other term used to
22 describe an entity which is a part of the Executive Branch of the
23 State of Oklahoma under any state statute or regulation, except as
24 otherwise provided for in this act.

1 THAT CompSource Mutual Insurance Company is hereby prohibited
2 from pursuing any means to change its corporate structure from the
3 mutual insurance company previously allowed by the Legislature
4 except for the change to a mutual insurance holding company.

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6 DIRECT TO CALENDAR.
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